

SENATE BILL 1462

By Watson

AN ACT to amend Chapter 615 of the Private Acts of 1931; as amended by Chapter 326 of the Private Acts of 1941; Chapter 534 of the Private Acts of 1953; Chapter 39 of the Private Acts of 1965; Chapter 20 of the Private Acts of 1965; Chapter 220 of the Private Acts of 1974; Chapter 106 of the Private Acts of 2000; and Chapter 5 of the Private Acts of 2017; and any other acts amendatory thereto, relative to the charter for the City of Ridgeside.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Chapter 615 of the Private Acts of 1931, as amended by Chapter 326 of the Private Acts of 1941, Chapter 534 of the Private Acts of 1953, Chapter 39 of the Private Acts of 1965, Chapter 20 of the Private Acts of 1965, Chapter 220 of the Private Acts of 1974, Chapter 106 of the Private Acts of 2000, and Chapter 5 of the Private Acts of 2017, and any other acts amendatory thereto, that being the charter of the City of Ridgeside, is amended by deleting the chapter in its entirety and substituting:

ARTICLE I. Corporate Name, Boundaries, and Powers.

Section 1. Corporate name. That the inhabitants residing within the corporate limits and boundaries, as hereinafter established, shall be and shall continue a body politic and corporate under the name of "City of Ridgeside," and as such shall have perpetual succession, may have a corporate seal, and sue and be sued.

Section 2. Corporate limits. The corporate boundaries of the City of Ridgeside are as contained in prior charters and in annexation ordinances or other lawful annexation schemes, which are recorded and kept in the office of the city; said boundaries are herewith reaffirmed. Extensions of the corporate boundaries shall be as provided by future annexation action in accordance with state law. For accuracy, the reference to the boundary found in Priv. Acts 1965, Ch. 39 §1 relating to the "Negro Baptist Church" is amended to state: "Beginning at a stake corner in the north line of

Shallowford Road just across the road from the intersection of Hilldale Drive and at a corner found at coordinates N 66° 09' 18" W; thence northeastwardly S 32° 32' 32" W along the southeastern line of the tract designated as Hamilton County Tax Map 147H-C-019 300 feet to a stake corner; thence S 57° 51' 28" E along the northeastern line of the tract designated as Hamilton County Tax Map 147H-C-019 westwardly 113 feet to a stake corner. . ." with the remainder of the description in Priv. Acts 1965, Ch. 39 §1 remaining unamended.

Section 3. Powers. The City of Ridgeside shall have the following powers:

(1) To assess, levy, and collect taxes upon all property and privileges within its limits which are or shall be taxable by the laws of the state, and to assess, levy, and collect taxes on any and all subjects or objects of taxation, either for general or special purposes, not expressly forbidden by general laws of the State of Tennessee.

(2) To adopt such classifications with reference to all subjects or objects of taxation, not otherwise expressly prohibited by law.

(3) To make and levy special assessments against abutting or adjoining property for local improvements.

(4) To contract and be contracted with.

(5) To incur debts by borrowing money or otherwise, and to give any appropriate evidence thereof, in the manner hereinafter provided.

(6) To issue and give, sell, pledge, or in any manner dispose of negotiable or non-negotiable interest bearing or non-interest bearing warrants, bonds, promissory notes or orders of the city, upon the credit of the city, or solely upon the credit of specific property owned by the city, or solely upon the credit of income derived from any property used in connection with any public utility owned or operated by the city, or solely upon the credit of the proceeds of special

assessments for local improvements, or upon any two (2) or more, or a combination of any two (2) or more, of such credits.

(7) To expend the revenues, monies and property of the city for all lawful municipal purposes.

(8) To purchase, acquire, receive and hold, maintain, improve, sell, lease, mortgage, pledge or otherwise dispose of property, real or personal, or any estate or interest therein, either within or without the city or state.

(9) To effectually exercise the right of eminent domain, and to condemn property, real or personal, or any easement, interest, estate or use therein, either within or without its territorial limits, for present or future public use, such right of eminent domain to be exercised in any such manner as may be lawfully provided.

(10) To receive and hold property in trust, real or personal, either within or without the city or state, and to administer such trusts for public use and benefit.

(11) To acquire, own, erect, build, construct, maintain and operate, or to sell, lease, mortgage, pledge or otherwise dispose of any public utility, or any estate or interest therein, or property, real or personal, used in connection therewith, or any utility of service to the city, its inhabitants, or any part thereof.

(12) To grant to any person, firm, corporation, or association franchises for public utilities and public services to be furnished to the city and its inhabitants. The power to grant franchises shall include the power to grant exclusive franchises, and whenever an exclusive franchise is granted, it shall be deemed as exclusive not only as against any other person, firm, corporation, or association, but also as against the city itself. Franchises may be granted for the period of twenty-five (25) years, but not longer, and the city is fully empowered to prescribe and regulate in each grant of a franchise rates, fares, charges and

other regulations that may be made by the grantee of the franchise. Franchises may by their terms apply only to the territory within the corporate limits at the dates of the franchises, or to the territory as said limits may thereafter be enlarged, and to the then existing streets, alleys and other thoroughfares, or to any other streets, alleys and other thoroughfares that thereafter may be opened.

(13) To make contracts with any person, firm, corporation, or association for public utilities and public services to be furnished to the city and its inhabitants. The power to make contracts shall include the power to make exclusive contracts, and when an exclusive contract is entered into, it shall be deemed as exclusive not only against any other person, firm, corporation or association, but also as against the city itself. Such contracts may be entered into for the period of twenty-five (25) years or less, but not longer, and the city is fully empowered to prescribe in each such contract entered into, the rates, fares, charges and regulations that may be made by the person, firm, corporation or association with whom the contract is made. Such contracts may by their terms apply to the territory within the corporate limits of the city at the date of the contract, and as said corporate limits thereof may be enlarged, and to the then existing streets, alleys, and thoroughfares, and to any other streets, alleys and other thoroughfares that thereafter may be opened.

(14) To prescribe reasonable regulations regarding the construction, maintenance, equipment, operation, and service of public utilities, and compel, from time to time, reasonable extensions of facilities for such services, but nothing herein shall be construed to permit the alteration or impairment of any of the terms or provisions of any exclusive franchise granted, or of any exclusive contract entered into under subsections (12) and (13) of this section.

(15) To establish, open, locate, relocate, vacate, alter, abandon, widen, extend, grade, improve, repair, construct, maintain, light, sprinkle, and clean

public highways, streets, alleys, boulevards, parks, squares, bridges, culverts, sewers, drains, and public grounds and properties within or without the corporate limits, and to regulate the use thereof.

(16) To construct and reconstruct, improve and re-improve by opening, extending, widening, grading, curbing, guttering, paving, graveling, macadamizing, draining, or otherwise improving any streets, highways, avenues, alleys, or other public properties within the corporate limits, and to assess a portion of the cost of such improvements upon the property abutting upon or adjacent to such streets, highways, avenues, alleys, or other public properties.

(17) To purchase, acquire, hold, construct, maintain, and regulate marketplaces, public properties, and buildings, bridges, culverts, sewers, and other structures, works, and public improvements.

(18) To collect and dispose of drainage, sewage, offal, ashes, garbage, and refuse in any manner not in conflict with general laws, or to license and regulate such collection and disposal.

(19) To license and regulate all persons, firms, corporations, or associations engaged in any business, profession, vocation, occupation, or trade not forbidden by law, and to impose a license tax upon any property, thing, business, profession, vocation, occupation, or trade not prohibited by law.

(20) To define, prohibit, abate, suppress, prevent, and regulate all acts, practices, conduct, business, occupations, professions, vocations, or trades, uses of property and all other things whatsoever detrimental, or liable to be detrimental, to the health, morals, comfort, safety, convenience, or welfare of the inhabitants of the city, and in conjunction with the powers herein set out to demand and receive fees and costs of permits and inspections incident to effectual regulation.

(21) To prescribe locations, zones, and limits within which business occupations and practices liable to be nuisances or detrimental to the health, morals, security, comfort, or general welfare of the inhabitants of the city may lawfully be established, conducted or maintained.

(22) To regulate the location, bulk, occupancy, area, lot, height, construction, and materials of all buildings and structures, and to inspect all buildings, lands and places as to their condition for health, cleanliness, and safety, and when necessary, prevent the use thereof and require any alterations or changes necessary to make them healthful, clean, or safe.

(23) To provide and maintain charitable, educational, curative, recreative, corrective, detentive or penal institutions, departments, facilities, conveniences and services, or to contract with any outside agency to provide and maintain, or to render the functions and services contemplated herein.

(24) To enforce all ordinances, rules or regulations by means of fines, forfeitures, and penalties, or by action or proceeding in any court of competent jurisdiction, or by any one or more of such means, and to establish, by ordinance, limits for such fines, forfeitures, or penalties.

(25) To regulate, tax, license, or suppress the keeping or running-at-large of animals within the city, to impound the same, and in default of redemption to sell or otherwise dispose of the same.

(26) To call upon the board of election commissioners of Hamilton County to call, provide for, and control all municipal elections, including all elections respecting bond issues, and to provide for and regulate the registration of voters, and to certify the results of such elections.

(27) To make all reasonable regulations to prevent the spread of contagious diseases within the city, and to make and enforce regulations to promote sanitation, health, and general welfare of the inhabitants of the city.

(28) To purchase, acquire, establish, construct, equip, improve, maintain, and operate for said city a municipal airport or landing field for the use of aircraft, and to acquire by purchase, lease, condemnation, or otherwise, real estate situated either within or without the limits of said city, or to set apart any real estate now owned by it to be used for this purpose.

(29) To have and exercise all lawful powers, which now or hereafter it would be lawful to here specifically enumerate, as fully and effectually as though said powers were specifically enumerated herein.

(30) To purchase, acquire, establish, improve, maintain, and operate a municipal cemetery, either within or without the corporate limits of said city, and to provide for adequate supervision, care, and maintenance thereof, and for this purpose said city is expressly authorized to establish and create out of any available revenues a fund for the perpetual care and maintenance of said cemetery; said fund to be kept separate and apart from all other revenues of said city and to be handled, controlled, supervised and disbursed in such manner as may be provided.

Section 4. Powers not exclusive. The enumeration of the particular powers in this article is not exclusive, nor restrictive of general words or phrases granting powers, nor shall a grant or failure to grant powers in this article impair the powers granted in any subsequent article or section of this charter, and whether powers, objects, or purposes are expressed conjunctively or disjunctively, they shall be construed so as to permit the city to exercise freely any one or more of such powers as to any or more such objects for any one or more such purposes.

Section 5. Exemption of property from taxation prohibited. The commission shall possess no power and is hereby expressly forbidden to exempt any property of whatsoever kind or character, or any person, firm, corporation, or association, from taxation, unless such property or person, persons, firm, corporation or association is

exempted from taxation for state or county purposes under state law in such cases made and provided.

ARTICLE II. Elections.

Section 1. Eligible Voters. All persons who are entitled to vote for members of the general assembly under the general election laws of the State of Tennessee and who reside within the corporation shall be entitled to vote in city elections; provided, all persons residing outside the corporation limits, having owned a taxable freehold within the corporation for a period of one (1) year next preceding the date of said election, and being otherwise qualified, shall also be entitled to vote in city elections; provided further, that such person residing outside the corporation limits and owning a taxable freehold within the corporation for a period of one (1) year next preceding the date of said election, shall also have a controlling interest of fifty percent (50%) or more of the taxable freehold within the corporation.

Section 2. Laws governing. The Hamilton County Election Commission shall call elections and appoint the necessary and proper election officers, and such elections shall be held under and pursuant to the general laws prescribed for elections of members of the General Assembly of the State of Tennessee.

Section 3. Elections of the Board of Commissioners. Elections are held on the first Tuesday after the first Monday in November every four (4) years in the same year as the gubernatorial election. The membership on the commission on the effective date of this act shall remain in place until each member's term expires and a new board is elected.

In the event two (2) or more candidates fail to win election due to a tie vote, a run-off election between such candidates shall be held on a date fixed by the Hamilton County Election Commission not more than sixty (60) days after the date of the election at which the tie vote occurred.

The term of office of the candidate elected at said run-off election shall commence on the first day of the calendar month following the date of the run-off election and continue for the remainder of the four-year term and until his/her successor is elected and qualified.

ARTICLE III. Governing Body.

Section 1. City Commission. The governing body of the city shall be composed of three (3) members including three (3) commissioners to be known as the "Board of Commissioners," who shall hold office and exercise the powers and duties imposed by this charter. Commissioners shall be residents of the city.

Section 2. Eligibility to serve as commissioner. No person shall be a commissioner unless they are a citizen of the State of Tennessee and a bona fide resident of the City of Ridgeside for a minimum of twelve (12) months prior to the election. Any commissioner who moves residence outside city boundaries vacates his/her office and is no longer qualified to serve as commissioner. In such circumstances, the commissioner shall resign from office immediately or the remaining members of the commission may declare the seat to be vacant.

Section 3. Term of office of commissioner. The term of office of commissioner shall be four (4) years, beginning at the first regular City Commission meeting following the election, and continuing until a successor is elected, qualified, and seated following the city election held four (4) years later.

Section 4. Salary. The salary of the mayor and commissioners shall be set by ordinance by the City Commission. The salary of the mayor and commissioners shall not be altered prior to the end of the term for which such person was elected.

Section 5. Oath of Office. The commissioners, before entering upon their duty as commissioners, shall each take an oath before a judge or other person authorized by law to administer oaths, and each oath shall be filed and kept in the office of the secretary. The oath taken shall be to support the Constitution of the United States and

the State of Tennessee and to obey the laws and to strive to maintain an honest and efficient city government, free from partisan dictation, and to perform the duties of the office to the best of his/her abilities.

Section 6. General legislative powers. The legislative powers, and all other powers granted to said municipality by this charter, except as otherwise herein provided, are hereby vested in, and delegated to the City Commission, and it may by ordinance or resolution, not inconsistent with the provisions of this charter, prescribe the manner in which all powers of the municipality shall be exercised, provide the necessary administrative means, and do all things and perform all acts within or without the city or state to effectually exercise the powers, herein granted, to protect the rights and interests of the city.

Section 7. Meetings. The City Commission shall fix the time and place by ordinance at which regular meetings of the commission will be held. A minimum of four (4) quarterly meetings shall be held.

Special meetings of the commission may be held at such times, and on such dates whenever in the opinion of the mayor, or any two (2) commissioners, the welfare of the city demands it. In such case, written or electronic notice shall be given to the mayor, commissioners, and the city attorney. Each call for a special meeting shall set forth the purpose for which the meeting is called and the character of business to be discussed and considered at the meeting.

Section 8. Mayor. The commissioner who receives the highest vote count in the last regular city election will serve as mayor. The mayor shall preside at all meetings of the city commission.

Section 9. Vice Mayor. The commissioner who received the second highest vote count in the last regular city election will serve as vice mayor. The vice mayor shall act as mayor in the event of the temporary absence or illness of the mayor. The vice mayor shall have all the power and authority conferred by law upon the mayor during

such temporary absence or illness. The vice mayor may also serve as treasurer or secretary of the commission.

Section 10. Treasurer.

(1) The commission shall elect by majority vote at their first meeting, one (1) of the commissioners to act as treasurer.

(2) Duties.

(a) The treasurer shall exercise general supervision over the fiscal affairs of the city, and general accounting supervision over all the city's property, assets, and the disposition thereof.

(b) The treasurer shall require proper fiscal accounts, records, settlements, and reports to be kept, made, and rendered to him/her by the several officers of the city and shall control and continually audit the same.

(c) Other duties of the treasurer may be assigned by ordinance.

(3) The commission may require the treasurer to execute a bond with good and sufficient security in an amount set by the commission.

Section 11. Secretary. The commission shall elect by majority vote at their first meeting, one of the commissioners to act as secretary. The secretary shall ensure that proper minutes are taken at public meetings, in accordance with state law. Other duties of the secretary may be assigned by ordinance.

Section 12. Vacancies. In the event of the vacancy by reason of the death, resignation, or removal of the mayor or one (1) or more of the commissioners, the commission shall have the power to fill the vacancy or vacancies by majority vote of said commission, and said vacancies are to be filled until the next regular municipal election.

Section 13. Quorum. A majority of two (2) commissioners shall constitute a quorum for the transaction of business.

Section 14. Record of meetings. The city commission shall be required to keep an accurate record of all meetings of the commission, both regular and special, and such records shall remain open for inspection to the public at all times in accordance with Tennessee law.

ARTICLE IV. Ordinances and Resolutions.

Section 1. Ordinances. All ordinances shall be approved on two (2) separate readings. Only the captions of any ordinance need be read. Copies of the entire text of all ordinances shall be furnished to members of the commission prior to the meetings at which they shall be read. A copy of each ordinance shall be placed in the official minutes of the Board of Commissioners upon final passage. All ordinances shall begin with "Be it ordained by the Board of Commissioners of the City of Ridgeside".

Section 2. Resolutions. All resolutions shall be approved in a public meeting with one (1) reading. Only the captions of the resolution need to be read.

Section 3. Signatures. Every ordinance and resolution upon final passage shall be signed by the mayor and at least one (1) other commissioner, and shall thereupon be delivered to the secretary, whose duty it shall be to copy it in a book to be kept for that purpose.

ARTICLE V. Mayor.

Section 1. Duties and powers.

(a) The mayor shall be the ceremonial head of the city and preside at all meetings of the City Commission, performing all such other duties as is consistent with the office, or as may be imposed upon it by ordinance not in conflict with the charter.

(b) The mayor shall have a seat on the City Commission, a voice, and a vote.

(c) It shall be his/her duty to sign the minutes of all meetings, all ordinances and resolutions following passage, and to execute all deeds, bonds,

contracts, notes, and other instruments in the name of the city and to acknowledge execution of the same as mayor as authorized by the commission.

(d) Other duties of the mayor may be assigned by ordinance.

ARTICLE VI. Officers and Employees.

Section 1. City attorney, city judge, and other positions. The City Commission shall appoint and fix the salary of the city attorney and city judge who shall serve at the pleasure of the commission, and shall establish and make provision by ordinance or resolution for such other officers, agents, and employees as may be necessary, and for this purpose, the commission is hereby fully authorized and empowered to enter into any contract of employment with these offices, upon such terms, at such salary and for such period of time, as the commission may determine.

Section 2. Personnel policies and procedures. The City Commission shall adopt personnel policies and procedures, if any employees are hired in the city, in compliance with state law, and any other applicable provision of state law. Such policies and procedures shall be predicated on the basis of merit, efficiency, and fitness for duty, free of personal and political considerations. The policies and procedures may be amended from time to time by the city commission.

ARTICLE VII. City Court.

Section 1. Court established. There is hereby created and established a City Court for the City of Ridgeside.

Section 2. City judge. A city judge shall be appointed by the City Commission to serve until the next appointment of said judge with the term of office to be four (4) years. The city judge shall be appointed every four (4) years by the commission.

Section 3. Judge not required to be full-time office. The city judge shall not be required to hold office to the exclusion of all other activities and may continue to practice law and conduct other business not in conflict with the duties of city judge.

Section 4. Qualification and compensation of judge.

(a) Any person who is a resident of Hamilton County and has attained the age of twenty-five (25) years and is an attorney licensed to practice law in this state in good standing with the Tennessee Board of Professional Responsibility, shall be eligible for the office of city judge. A failure to continue to reside in Hamilton County shall result in the judge vacating the office and his/her successor shall be appointed by the city commission for the balance of the unexpired term.

(b) The compensation of the judge shall be as fixed by the City Commission and shall be paid on a basis to be determined by the commission. Such compensation shall not be decreased or increased during the term of office of the city judge.

Section 5. Duties and powers.

(a) The city judge shall preside over city court, as provided by state law, and shall have power and authority to impose fines and forfeitures for violations of city ordinances, to preserve and enforce order in the court, and to enforce collection of all fines, costs, and forfeitures imposed by the court.

(b) The judge of the city court shall have the authority to impose a monetary penalty in an amount not to exceed fifty dollars (\$50.00) for each violation of a city ordinance, in addition to court costs as set by ordinance. The judge shall have powers and authority granted to municipal court judges by general law.

Section 6. Acting judge; vacancy. The temporary absence or vacancy in the office of city judge shall be addressed as provided in the Municipal Court Reform Act, at Tennessee Code Annotated, Title 16, Chapter 18, Part 3.

Section 7. Jurisdiction. Jurisdiction of the city court is as authorized by the Municipal Court Reform Act. Accordingly, the Ridgeside City Court has jurisdiction over,

and may determine the outcome of, charges contained in citations issued for violations of city ordinances.

Section 8. Costs. Court costs shall be set by ordinance by the Board of Commissioners, as required by state law.

Section 9. Appeals. Appeals from city court shall comply with requirements set by state law, at Tennessee Code Annotated, Section 16-18-307.

ARTICLE VIII. City Attorney.

Section 1. Qualifications. A city attorney shall be appointed by and serve at the pleasure of the city commission. The attorney shall be at least twenty-five (25) years old, a resident of Hamilton County, licensed to practice law in the courts of this state, and in good standing with the Tennessee Board of Professional Responsibility.

Section 2. Duties. It shall be the duty of the city attorney to direct the management of all litigation in which the city is a party; represent the city in legal matters and functions and proceedings of any nature, including the function of prosecuting attorney in the city court; attending meetings of the City Commission if requested; advising the commission as to legal questions affecting the city's interests; and approving, in writing, all contracts, deeds, bonds, ordinances, resolutions, and other documents to be signed in the name of the city. The commission may, from time to time, also obtain the services of such additional attorneys at law as it deems necessary and appropriate.

Section 3. Additional qualifications, salary, term of office. Additional qualifications, if any, salary, and the term of office of the city attorney shall be fixed by the City Commission.

ARTICLE IX. Finance.

Section 1. Fiscal Year. Unless otherwise provided by state law, the city shall operate on a fiscal year beginning July 1 and ending June 30.

Section 2. Budget. The adoption of an annual budget shall be a prerequisite to the appropriation of money for municipal purposes and the levy of property taxes.

ARTICLE X. Taxation and Revenue.

Section 1. Subjects and objects of taxation. The City of Ridgeside is hereby expressly empowered to assess, levy, and collect taxes upon all property and privileges within its limits, which are or shall hereafter be taxable by the laws of the State of Tennessee, and to assess, levy, and collect taxes on any and all subjects or objects of taxation, either for general or special purposes, not expressly prohibited by general laws of the State of Tennessee.

Section 2. Tax levy. It shall be the duty of the treasurer, as soon as the assessment roll in each year is ready for the extension of taxes, to produce the same or a true copy thereof before the city commission and to certify the total amount of valuation or assessment of the taxable property within the limits of the municipality, and the city commission shall thereupon proceed to make the proper levy, to meet the expenses of the city for the fiscal year, and cause the said levy to be entered upon the tax list of the current year.

Section 3. Tax due date. All taxes shall be due and payable at such times as may be provided by ordinance or state law but unless otherwise provided by ordinance or state law, the same shall be due and payable on the first day of October of the year for which taxes are assessed.

Section 4. Penalty and interest. On the first day of March of the year following that for which taxes are assessed, or on such other date as may be provided by ordinance, a penalty of one-half of one percent (0.5%) and interest of one percent (1%) shall be imposed upon all taxes remaining unpaid. An additional penalty of one-half of one percent (0.5%) and additional interest of one percent (1%) shall be added for each month thereafter until the same is paid in full.

Section 5. Distress warrants collection. After taxes become delinquent, the tax books in the hands of the city treasurer shall have the force and effect of a judgment and execution from a court of record, and the county trustee or collector shall have the power to issue distress warrants, in the name of the City of Ridgeside, to enforce the collection of said taxes against the person owning the property for which the taxes are assessed, and shall be ample authority for all lawful authorities having such delinquent taxes for collection to distrain and sell a sufficient amount of the personal property to satisfy the delinquent taxes, interest, penalties, costs, and attorneys' fees.

Section 6. Delinquent tax collections. All municipal taxes on real estate within the City of Ridgeside, and all penalties, interest, and costs accruing thereon, are hereby declared to be a lien on said real estate from and after January 1 of the year for which the same are assessed, and for the purpose of enforcing collection of said taxes and liens securing the same, the city commission may direct the treasurer to certify to the trustee of Hamilton County for collection a list of all real estate upon which municipal taxes remain due and unpaid, and the same shall be sold in like manner and upon the same conditions as real estate is sold for delinquent state and county taxes. Or, the city commission may by proper action direct the city attorney to institute separate actions to enforce collection of delinquent taxes due the city, in which event the treasurer shall certify a list of all real estate upon which municipal taxes remain due and unpaid to the city attorney, who in turn shall file proper bills to enforce the liens of taxes due the municipality under the provisions of the present statutes, or any future laws in such cases made and provided.

Section 7. Improvement and service liens. The city commission shall have the authority in like manner to file bills in the chancery court of Hamilton County for the collection of assessments and levies made for payment of improvements or service in said city, such as paving, sidewalk, curbing, gutters, sewers, and other improvements for which assessments may be made under this charter, the cost of which is made a charge

on property owners abutting said improvements and a lien on abutting property; the suits thus commenced to be conducted as other suits in chancery for the enforcement of similar liens.

Article XI. Transition and Severability.

Section 1. Gender. Whenever, in this charter, "man, men, him, his, he," or their related pronouns may appear either as words or as parts of words, they have been used for literary purposes and are meant in their generic sense "i.e., to include all humankind, both female and male sexes."

Section 2. State and Municipal Laws. All city ordinances, resolutions, orders and regulations which are in force when this charter becomes fully effective are repealed to the extent that they are inconsistent or interfere with the effective operation of this charter or of ordinances or resolutions adopted pursuant thereto. To the extent that the constitution and laws of the State of Tennessee permit, all laws relating to or affecting this city or its agencies, officers, or employees which are in force when this charter becomes fully effective are superseded to the extent that they are inconsistent or interfere with the effective operation of this charter or of ordinances or resolutions adopted pursuant thereto.

Section 3. Severability. If any provision of this charter is held invalid, the other provisions of the charter shall not be affected. If the application of the charter or any of its provisions to any person or circumstance is held invalid, the application of the charter and its provisions to other persons or circumstances shall not be affected.

SECTION 2. Nothing in this act shall be construed to remove any incumbent from office nor abridge the term, nor alter the salary of any incumbent prior to the end of the term for which such elected official was selected, as prescribed in Article XI, Section 9 of the Constitution of the State of Tennessee.

SECTION 3. This act shall have no effect unless it is approved by a two-thirds (2/3) vote of the legislative body of the City of Ridgeside. Its approval or nonapproval shall be proclaimed by the presiding officer of the legislative body and certified to the secretary of state.

SECTION 4. For the purpose of approving or rejecting the provisions of this act, it shall be effective upon becoming a law, the public welfare requiring it. For all other purposes, it shall become effective as provided in Section 3.